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Maddy Buck  
www.maddybuck.com

Faisal D'Souza, NCO  
Office of Science and Technology Policy  
2415 Eisenhower Avenue  
Alexandria, VA 22314

Response to the National Science Foundation's and  
Office of Science & Technology Policy's Request for Information  
on the Development of an Artificial Intelligence (AI) Action Plan  
90 Fed. Reg. 9088 (Feb. 6, 2025)  
Docket No. NSF\_FRDOC\_0001

I submit this comment as an independent artist, writer, and technologist.

In the United States, we have a belief that is not shared everywhere in the world—that intellectual property is, well, property. Copyright and patent protections give American artists, inventors, and creatives in all disciplines a reason to innovate because their creative work is protected from theft. If registered intellectual property is used without consent, the owner of the intellectual property has a cause of action against the infringer.

The United States is known for the innovation and creativity it brings to the world. Hollywood, Nashville, the Iowa Writers Workshop, Pixar Studios, and more: these creative engines fuel the world. Why? In the U.S., creators, authors, artists, screenwriters, among others, know that they can exploit their *own* work to the fullest thanks to U.S. copyright protections.

To enhance America's AI dominance, we need to maintain the existing copyright structure that protects works of authorship. At the same time, we must incentivize technology to develop in a way that prevents AI models from scraping and pillaging copyrighted works.<sup>1</sup>

Our AI companies, the most innovative in the world and staffed with some of the smartest minds of our time, have demonstrated their ability to find groundbreaking solutions to technical problems. The only thing stopping them from finding a way to keep their models thriving and growing, while also compensating the authors, artists, and creators whenever their work is used, is a lack of incentive.

### **My proposal is this:**

The U.S. should avoid policy that supports an erosion of, or incomplete copyright protection for,

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<sup>1</sup> TollBit State of the Bots - Q4 2024 outlines how scraping by AI bots is increasing, even while blocked, and in a way that drives referral traffic away from the original source. See TollBit State of the Bots - Q4 2024, February 24, 2025, <https://tollbit.com/bots/24q4/>.

copyrighted works that are used to train AI models. The scraping of copyrighted works to train AI models is not fair use. Instead, the U.S. should provide incentives to AI companies to develop AI in a way that:

1. Makes transparent the author of any copyrighted work that is used to train its model,
2. Allows creators to license their work to the models by opting into training, just as a photographer may choose to license their work to a stock photo company.
3. Allows compensation for creators whenever their work is used by an AI in generating a response to a prompt (for example, when a response summarizes a copyrighted journal article).

There is a close analogy in the music industry. For years, a very popular way of creating songs has been by sampling short segments of already-existing songs, combining the sample with other samples, instruments, effects, and vocals to create a brand new song. If a sample is used in a new song, the songwriter of the sampled song is officially considered one of the songwriters of the new song, entitled to their share of the royalties, even though they had no direct involvement with the composition of the new song. This is precisely the model that AI companies should be required to follow.

Incentivizing the development of AI models in this way will maintain and strengthen the rights of authorship that has made this country so promising for creators of all kinds. Ours is not a culture of copycats, and that is what makes us great. With the advent of AI, we should incentivize the development of AI in a way that won't chill the potential for more creativity.

Thank you for your consideration,

Maddy Buck